



Client Services Agreement and Terms of Engagement

Chapter 7 Experts (Family Court)

Please read these terms and conditions (Terms) carefully. They apply to, and are binding on, The Relationspace, our Experts, the Legal Representatives, the Applicant/s and Respondent/s in any proceedings represented by the Legal Representative/s (**the Parties**). In addition, the Parties are required to comply with the requirements of Rule 7 of *the* Federal Circuit and Family Court of Australian (Family Law) Rules 2021.

1. Background

- 1.1 The Relationspace is a dedicated Expert referral and clinical practice bringing together professionals who assist parents and families experiencing divorce and separation where there is high conflict. Where court ordered, our team of experts provide reports and opinions to the Court to assist on matters relating to families, mental health, and parenting arrangements during and after parental separation.
- 1.2 The Relationspace only accepts joint instructions from both sets of Legal Representative/s or in the case where a Party or Parties are self-represented, jointly settled instructions.

2. Provision of the Services

- 2.1 Where represented, the Legal Representative/s will provide Orders and a joint letter of instruction to The Relationspace for them to refer the Parties to the relevant Expert. If there are no orders of the Court appointing the Expert, a privately requested report may be accepted at our discretion, subject to revision of the joint letter of instruction and acceptance of these Terms.
- 2.2 Each Legal Representative warrants that they have obtained the relevant approval and consent of the Parties for:
 - (a) The Relationspace and the Expert providing any of the Services to the Parties; and
 - (b) The respective clients paying the Fees in accordance with Orders or joint agreement which is settled prior to provision of the joint instruction letter; and
 - (c) The Relationspace or the Expert providing a copy of any report in respect of the Parties to the Court pursuant to rule 7.04 or to the Parties pursuant to rule 7.03 of the Rules.
- 2.3 Each Legal Representative must alert the Parties to the fact that the information provided by the Parties and any family or other examinees, will be used in the production of a psycho-legal report (e.g., Family Report, Child Impact or Specific Issues Report, or Therapeutic Counselling Report) and that the contents of assessments, including interviews and clinical observations, are not private or confidential. Legal Representatives must ensure that any child who is to be

assessed is advised that what they say during their assessment will be known to others, including parents/caregivers.

- 2.4 The Relationspace will provide details of the Expert, their CV and Terms of Engagement, the date of any prospective appointment/s, costs and requirements to progress a booking, jointly to both the Legal Representatives, or the Party directly if they are self-represented.
- 2.5 If represented, the Legal Representative must provide a copy of the Plain Language Statement to their client as soon as practical after being supplied with those documents by The Relationspace; Where a Party is self-represented, this will be provided directly to them.

3. Report Preparation

- 3.1 In preparing the report it is agreed that:

- (a) Interviews may be conducted by telehealth, in person or a combination of both and at the discretion of the Expert;
- (b) Interviews may be conducted at any suitable location to the Expert and the Parties and unless otherwise arranged will be at The Relationspace, 6/67 Castlereagh Street Sydney NSW 2000;
- (c) The use of mobile phones and other electronic devices will not be permitted in any interview (unless for the purpose of using Telehealth software for a Telehealth interview);
- (d) Report interview dates are held and exclusively reserved on the date of engagement given as and recorded on the Joint Letter of Instruction. Section 4 fee obligations will apply from the date of engagement.

- 3.2 Things that must happen prior to the Expert commencing their preparation:

- (a) A consolidated joint index providing a numbered list of all materials for Parties and the intended subpoena material (if any is due and/or comes within the terms of the report being requested) must be jointly prepared and agreed by the Parties (or their Legal Representatives) before any uploads are initiated.
- (b) The consolidated joint index must fully reconcile with the materials provided or the upload may otherwise be rejected wholly.
- (c) The Expert's office only accepts e-materials provided via the dedicated upload portal <https://therelationspace.com.au/uploads/>. Only material provided through this portal will be considered.
- (d) Material provided by email will be rejected unless otherwise flagged as necessary for technical reasons and be redirected to the upload portal.
- (e) The cost for a Single Expert Report (long form) includes review of a combined limit of 1,000 pages of material provided from the Parties. Excess pages are any volume over

1000 pages and an additional invoice will be issued to the Parties for payment prior to the Expert reviewing excess materials.

- (f) The cost for a Psychiatric Assessment Report, Mental Health Assessment, Educational and Developmental Assessment, or Updating Report includes review of a combined limit of 500 pages of material provided from the Parties. Excess pages are any volume over 500 pages and additional invoices will be issued to the Parties for payment prior to the Expert reviewing excess or updating materials.
 - (g) The cost for a Specific Issues Assessment or Cross Examination includes review of a combined limit of 200 pages of material provided from the Parties. This will include subpoena materials. Excess pages are any volume over 200 pages and additional invoices will be issued to the Parties for payment prior to the Expert preparing excess materials.
 - (h) The cost for a Child Impact Assessment includes review of a combined limit of 100 pages of material provided from the Parties. Excess pages are any volume over 100 pages and additional invoices will be issued to the Parties for payment prior to the Expert reviewing excess materials.
 - (i) Material volume limits for reports fully funded by Legal Aid are advised on a case-by-case basis.
 - (j) All Experts require time to prepare the materials in advance of the interviews. If the fully reconciled consolidated index and all materials are not received, on or before the stated due date, the interviews may be cancelled or rescheduled at the absolute discretion of the Expert and the cancellation, or reschedule, fees set out in the schedule will apply.
 - (k) Materials provided after the interview will not be accepted other than with the agreement of the Expert. If there are extenuating circumstances and there is material to be uploaded after the interview/s then additional fees apply and will be invoiced.
- 3.3 Each Legal Representative acknowledges that the provision of the Services may be disrupted or delayed due to the acts of third Parties that are beyond the reasonable control of The Relationspace or the Expert. Where this occurs, The Relationspace will act to rectify this in good faith.
- 3.4 Where any one of the Parties, or the Legal Representative, does not provide reasonable assistance to enable the provision of the Services by the Expert, then the Expert is entitled to cancel the engagement. Cancellation fees will apply.
- 3.5 Where there is reasonable justification on The Relationspace's or the Expert's part (for example a conflict of interest, unresolved criminal proceedings against a Party, proceedings related to parenting, fear for personal safety) the Parties agrees that The Relationspace and/or the Expert may (at any time and whether or not the Expert knew or ought to have known of the issue previously) decline to supply any of the Services or decline to continue to supply those Services or decline to accept any Engagement from the Legal Representative even after Orders have been made or a joint letter of instruction has been accepted.

- 3.6 The Legal Representative acknowledges and accepts that in respect of any medical or other health care report and related advices provided to the Legal Representative, this is provided on an 'as is' basis and is at least partly based upon information provided by the Legal Representative and/or the Parties or examinees, as a consequence of which The Relationspace is not responsible for incorrect, incomplete or otherwise false information provided by the Legal Representative, the Parties, or any one of them, or an Examinee to the Expert or to The Relationspace which leads to any unsatisfactory conclusion.

4. Payment of Fees

- 4.1 The Parties agree to the fees as set out in the Schedule.
- 4.2 The Relationspace will provide the Legal Representatives/Parties with an invoice in accordance with the Orders and/or according to Services selected / sought / jointly agreed. An invoice for payment will be directed to the client by name and care of the Legal Representative. If represented, the Legal Representative and/or their respective clients must pay all fees within the Terms specified, self-represented Parties must also ensure fees are paid within the Terms specified.
- 4.3 If the Legal Representative or a Party or the Expert (in accordance with these Terms) cancels or reschedules an appointment a cancellation or reschedule fee (pursuant to the circumstances) as set out in the Schedule will apply.
- (a) If cancelled:
- (i) where both Parties have fully paid for the Service, the cancellation fee owing will be retained by Relationspace (with each Party paying 50% unless there is an order to the contrary), and the balance of fees paid (if any) will be paid back to each Party individually and to their nominated account.
 - (ii) Where one Party alone has paid for the Service and the other has not, then the full 100% of the cancellation fee will be retained from the proceeds paid by the one Party, and the balance of fees paid (if any) will be paid back to that Party individually and to their nominated account.
 - (iii) Where neither Party has paid for the Service and the date having been exclusively held and reserved following the engagement date of the Joint Letter of Instruction (see Section 3.1(d)) and the Parties seek to cancel the date, any future request for the Service with the same or any other panel Expert at The Relationspace will be treated as a reschedule and reschedule fees will apply according to whether it is a long form or a short form report.
- (b) If rescheduled:
- (i) The reschedule fee will be paid equally by the applicant and respondent, or in accordance with any order (if applicable).
 - (ii) If the Parties cannot agree to pay for, secure or attend the rescheduled appointment then no further appointment will be made, the Services will be cancelled and 4.3(a) applies.

4.4 Update reports can occur only for long form Single Expert Reports within 18 months of the original interview date. A sliding scale of fees apply depending on the time between the original and updating interview dates:

- (a) From 1 to 6 months between interview dates is a \$10k + GST reduction off the full report cost;
- (b) From 6 to 12 months between interview dates is a \$7k + GST reduction off the full report cost;
- (c) From 12 to 18 months between interview dates is a \$5k + GST reduction off the full report cost.

5. Disclaimer

5.1 To the extent permitted by law, if The Relationshipspace becomes liable to the Legal Representative in any manner whatsoever for breach of warranty or in relation to the supply of any Services, then The Relationshipspace's liability will be limited solely to the price paid for such Services or the cost of their resupply, whichever The Relationshipspace determines.

6. Form of Report

6.1 Expert reports will comply with Rule 7.21 of the Federal Circuit and Family Court of Australia (Family Law) Rules 2021.

7. Definitions

Engagement Any engagement of The Relationshipspace for any of the Services.

Expert A doctor or other expert health care professional, who is engaged to provide any Services.

Fees The fees payable by the Legal Representative for the provision of the Services, including any applicable charges relating to the cancellation or rescheduling of appointments.

Party A person who is represented by a Legal Representative, or is otherwise self-represented, and is participating in family law proceedings/the report matter.

Report The Expert's opinion of the matter as requested by the Legal Representative.

Services Any services provided by a panel expert, offered by The Relationshipspace to the Legal Representative or a Party, including, without limitation, the provision of medical reports, health care or related advice, medical consultation services, expert opinions, expert witness services and any associated health care management services.

Legal representative Each Legal Representative who is Party to the joint letter of instruction referred to above.



8. Our Commitment to You

- 8.1 Experts and administrators of The Relationships will perform with due care, competence and diligence. We will act ethically and in accordance with relevant professional codes at all times.
- 8.2 The Relationships strives to provide Legal Representatives with timely and independent expert medical opinions with the highest levels of Legal Representative service, diligence and professionalism.



FEES SCHEDULE

Single Expert Report (long form) Base Fee for each Expert

Rates below include interviews for up to 4 persons and Material volumes as stated at Part 3 of these Terms.

Dr Catherine Boland	\$24,000 + GST
Dr Yumna Dhansay	\$22,000 + GST
Dr Joel Singer	\$21,000 + GST
Dr Michael Emmett Maher	\$20,000 + GST
Dr Jacques Claassen	\$20,000 + GST
Fiona Darroch	\$19,000 + GST
Kalli Tsiotsioras	\$19,000 + GST
Dr Latika Sadashiv	\$18,000 + GST
Dr Monique Phipps	\$18,000 + GST
Dr Rebekah Hedges	\$18,000 + GST
Dr Natasha Dafo	\$18,000 + GST
Dr Fiona Martin	\$16,000 + GST
Emma Cashman	\$16,000 + GST
Sue Buckley	\$16,000 + GST
Paul Lodge	\$16,000 + GST
Rachel Brace	\$15,000 + GST
Brett Haddon	\$15,000 + GST
Drew Cowen	\$15,000 + GST
Terri Kelly	\$15,000 + GST

Reschedule and Cancellation Fees

Cancellation fees apply where a long form report is cancelled or rescheduled at short notice:

Notice period provided	Reschedule	Cancellation
More than 8 weeks' notice period	Nil retained - no additional fees apply to offer a new date	Nil retained - full refund provided
4-8 week notice period	10% of the report base fee invoice must be paid prior to the offer of a new date	20% of the report fee is retained, the balance refunded
2-4 week notice period	12.5% of the report base fee invoice must be paid prior to the offer of a new date	25% of the report fee is retained, the balance refunded
14 days notice period	50% of the report base fee invoice must be paid prior to the offer of a new date	50% of the report fee is retained, the balance refunded
7 days or less (or no show) notice period	65% of the report base fee invoice must be paid prior to the offer of a new date	100% of the report fee is retained with nil balance refunded



Short Form Report Fees

Child Impact Assessment (CIA): \$5,500 + GST

Specific Issues Assessment (SIA): \$7,700 + GST

Educational and Developmental Assessment (EDA): \$6,600 + GST

Psychiatric Assessment Report (PAR for 1 person): \$7,200 + GST

Psychiatric Assessment Report & Parental Capacity (PAR/PC for 1 person): \$8,000 + GST

Mental Health Assessment (MHA for 1 person): \$6,600 + GST

Mental Health Assessment & Parental Capacity (MHA for 1 person): \$7,400 + GST

- Should two adult Parties/parents in the same matter wish to book a PAR or PAR/PC or MHA, a \$1,000 + GST discount applies to the overall cost of the two reports.

Mental Health Assessment of Child (by Educational and Developmental Psychologist): \$6,600 + GST

Reschedule: \$3000 + GST (\$1500 + GST per Party)

- A new date is provided once the reschedule fee has been paid in full.

Cancellation: 100% of the report fee is retained with nil balance refunded.

Additional Fees

An additional fee applies:

Travel costs to other locations	\$1600 + GST per Party is a flat fee to cover the Expert travel time, travel costs, accommodation and professional rooms
For reviewing excess materials over volume limits set out in Part 3 of these terms	\$270 + GST for each 50 pages in excess of the prescribed amount
When accepted under extenuating circumstances, late arriving materials provided after the interviews, regardless of whether in excess or not	\$450 + GST for each 50 pages.
For additional or follow up interviews initiated by the Expert if required as a result of late arriving materials	\$450 + GST per hour.
If clarification about a report is sought under the Chapter rules for a conference under rule 7.25 or by means of questions under rule 7.26	\$270 + GST per hour
For a 5 th and subsequent person to be interviewed	\$900 + GST per person to be interviewed for a Single Expert report and \$500 + GST per person to be interviewed for any short form report